

("People are intelligent enough to evaluate the source of an anonymous writing. They can see it is anonymous. They know it is anonymous. They can evaluate its anonymity along with its message, as long as they are permitted, as they must be, to read that message. And then, once they have done so, it is for them to decide what is responsible, what is valuable, and what is truth.") (quotation omitted).

F. Eleventh Amendment Immunity

The attorney general revisits the issue of Eleventh Amendment immunity. In 281 Care Committee I, we held that the attorney general was a proper defendant under the Ex parte Young, 209 U.S. 123 (1908), exception to Eleventh Amendment immunity. 638 F.3d at 632. We determined that the attorney general's connection to the enforcement of § 211B.06 was three-fold: (1) the attorney general "may, upon request of the county attorney assigned to a case, become involved in a criminal prosecution of section 211B.06," (2) "the attorney general is responsible for defending the decisions of the OAH—including decisions pursuant to section 211B.06—if they are challenged in civil court," and (3) "the attorney general appears to have the ability to file a civil complaint under section 211B.06." Id. This connection, we held, was sufficient to make the attorney general amenable to suit under the Ex parte Young exception to Eleventh Amendment immunity. Id. at 633. The district court did not directly address this immunity issue when it granted summary judgment in favor of the county attorneys upon remand because it dismissed the claims. The district court did intimate, however, that this court's original denial of immunity "appears to have the same force of reason at the summary judgment stage as at the motion to dismiss stage."

On appeal, the attorney general reiterates that she may initiate a prosecution for violation of § 211B.06 only "[u]pon request of the county attorney" and only if the